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Case Number: 21PSCV00844 Hearing Date: August 13, 2026 Dept: G

Plaintiff Archtic, LLC’s Motion for Attorney’s Fees

Respondent: Plaintiff/Cross-Defendant Ricardo Fernandez and Defendant/Cross-Defendant Fervino, Inc.

TENTATIVE RULING

Plaintiff Archtic, LLC’s Motion for Attorney’s Fees is GRANTED.

BACKGROUND

This was a consolidated contractual fraud action (case nos. 21PSCV00844 and 21PSCV01019).

On October 15, 2021, plaintiffs/cross-defendants Ricardo Fernandez (Fernandez) and Anarbys Abrahante (Abrahante) filed a Complaint. On December 6, 2021, plaintiff Archtic, LLC (Archtic) filed a Complaint. On November 24, 2021 and May 18, 2022, defendant/cross-complainant Raul Trevino (Trevino) filed Cross-Complaints.

On September 15, 2025, the court issued the Statement of Decision (Final Decision After Court Trial), finding in favor of Fernandez and Abrahante and against Trevino on the Fernandez-Abrahante Complaint; finding in favor of Trevino and against Fernandez on the Cross-Complaint(s); and finding in favor of Archtic and against defendant/cross-defendant Fervino, Inc. (Fervino) on the Archtic Complaint. On October 13, 2025, the court issued the Judgment.

On December 12, 2025, Archtic filed this motion for attorney’s fees. On February 9, 2026, Fernandez and Fervino filed the opposition. On February 18, 2026, Archtic filed a notice of non-opposition but did not file a reply. On March 17, 2026, Archtic filed the supplemental motion, on March 24, 2026, Fervino filed the supplemental opposition, and on April 3, 2026, Archtic filed the supplemental reply.

The motion is set for a continued hearing on August 13, 2026.

ANALYSIS

Archtic moves for an award of attorney's fees in the amount of $128,959.35. For the following reasons, the court GRANTS the motion.

Legal Standard

In trial court litigation, attorney's fees are recoverable if authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "The reasonable hourly rate is that prevailing in the community for similar work." (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) "Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust." (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

"[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate [attorney's] fee award." (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorney's fees award.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) "[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) "[A]n award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) "[P]aralegal fees may be awarded as attorney's fees if the trial court deems it appropriate. . . ." (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney's fees as excessive that party must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) "[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

A "court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

The court first examines whether Archtic is a prevailing party. The court issued the Statement of Decision on September 15, 2025 finding in Archtic's favor and issued the Judgment on October 13, 2025 consistent with the Statement of Decision. (Statement of Dec., p. 55; Judgment, p. 2.) However, the Judgment incorrectly specified, "No party in the Fernandez

Complaint, Trevino Cross-Complaint or Archtic, LLC Complaint are the prevailing parties against any other party." (Judgment, p. 2.)

The inclusion of this language was both an oversight and inconsistent with the court's findings and conclusions as stated in the Statement of Decision and Judgment. While Fernandez and Fervino argue that the court may not revise "deliberately exercised judicial discretion," the prevailing party language was not a deliberate exercise of the court's discretion; it was a simple mistake. (Supp. Opp., p. 5.)

A court has the authority to "amend and control its process and orders so as to make them conform to law and justice." (Code Civ. Proc., § 128, subd. (a)(8).) When jurisdiction is conferred on a court, all the means necessary to carry its jurisdiction into effect are also given, including the authority to amend judgments. (Code Civ. Proc., §187; see McClellan v. Northridge Park Townhome Owners Assn., Inc. (2001) 89 Cal.App.4th 746, 753–756.) The court may also correct clerical mistakes in its judgment or orders sua sponte or based on a party's motion. (Code Civ. Proc., § 473, subd. (d).) Since the inclusion of language that stated that there was no prevailing party was not an exercise of the court's deliberate discretion, the court finds the mistake was a clerical error. Therefore, the court may amend the judgment to conform the Judgment to justice, including removal of the prevailing party language from the Judgment. (See Code Civ. Proc., §§ 128, subd. (a)(8); 473, subd. (d).)

Next, even if Archtic is the prevailing party, the court must determine whether being the prevailing party entitles it to attorney's fees. In trial court litigation, attorney's fees are recoverable if authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Civil Code section 8800 provides the statutory basis for awarding attorney's fees to Archtic as a prevailing party and states: "[T]he owner shall pay the direct contractor, within 30 days after notice demanding payment pursuant to the contract is given, any progress payment due as to which there is no good faith dispute between them." (Civ. Code, § 8800, subd. (a).) The statute continues, "[a]n owner that violates this section is liable to the direct contractor for a penalty of 2 percent per month on the amount wrongfully withheld, in place of any interest otherwise due. In an action for collection of the amount wrongfully withheld, the prevailing party is entitled to costs and a reasonable attorney's fee." (Civ. Code, § 8800, subd. (c).)

Fernandez and Fervino argue that Archtic is not a prevailing party under Section 8800 because it is not a general contractor, and Fervino is not the owner. (Opp., p. 6.) However, the court concluded in its Statement of Decision that Archtic performed substantial, project-specific services at and for the subject property, including "planning, execution, and compliance processes related to the project." (Statement of Dec., p. 54.) Though Fernandez and Fervino argue that Fernandez was the true owner of the property, Fernandez created Fervino for a joint venture to be carried out on the property. The court found that the Archtic's work was tied to tenant improvements and that Archtic "completed satisfactory work for the project to which Fervino did not object[]." (Statement of Dec., p. 54.) Finally, and most importantly, the court found that Fervino was liable to Archtic for the cause of action based on Civil Code 8800. (Statement of Dec., p. 42.) On this record, the court determines Archtic is entitled to attorney's fees as the prevailing party under Civil Code section 8800.

If the court determines Archtic is entitled to attorney's fees, the court must also analyze the reasonableness of the attorney's fees requested. A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) A party challenging the reasonableness of claimed attorney's fees must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc., supra, 163 Cal.App.4th at 563–564.)

Here, Archtic provided a fee bill evidencing $64,897.30 in attorney's fees in connection with this action. (Mot., Exh. 1.) Fernandez and Fervino did not attack Archtic's itemized billing with evidence that the fees claimed were inappropriate. Instead the declaration by counsel for Fernandez and Fervino only established that the attorney's fee award would be disproportionate, not that the fees incurred were unreasonable. (See generally Opp., Milner Decl., ¶¶ 1–4.) Thus, the court finds no proper basis upon which it may reduce the requested attorney's fees requested by Archtic.

Additionally, Archtic requests "Prompt Payment Penalties" permitted under Civil Code section 8800(c) totaling $51,255.00. Archtic calculated the penalty at 2% of the balance due ($50,250) multiplied by fifty-one (51) months, the number of months since the balance was due ($50,250 x.02 x 51 = $51,255) (Flores Decl., ¶5). The court finds Archtic is entitled to Prompt

Payment Penalties and that the penalties were correctly calculated.

Finally, Archtic requests the court consider additional attorneys fees and costs incurred since filing its motion in December 2025. Archtic claims additional attorney's fees of $14,501.25 and additional costs of $958.10 (Flores Decl. 7/8/26, ¶¶4, 5, and 6). Archtic provided a fee bill evidencing the additional attorney's fees and costs (Flores Decl. 7/8/26, Exh. 1.) Fernandez and Fervino objected to Archtic's request for additional fees and costs arguing that the fees were excessive, not reasonably incurred, and/or incurred as an accommodation to counsel for Archtic. (Milner Decl. 7/13/26). The court agrees that a reduction is required to the additional attorney's fees and costs requested by Archtic.

The court makes the following reductions to attorney fee entries: 1.5 hours for attorney research on 3/17/26 (at $450/hr), 2.4 hours for attorney research on 3/27/26 (at $450/hr), .7 hours for stipulation to continue hearing on 4/20/26 (at $450/hr), and .5 hours for stipulation to continue hearing on 5/7/26 (at $450/hr) for a total of $2,295.00 (5.1 hours x $450 = $2,295.00).

The court makes the following reductions to paralegal fee entries: .48 hours for stipulation to continue hearing on 5/6/26 and 5/7/26 (at $225/hr) for a total of $108.00 (.48 hours x $225 = $108.00).

Costs are reduced as follows: attorney service fees for 12/12/25 and 12/16/25 totaling $249.30.

Considering the above reductions, Archtic is awarded additional attorney's fees of $12,098.25 and costs of $708.80.

Therefore, Archtic's motion for attorney's fees is GRANTED.

CONCLUSION

For these reasons, the motion for attorney's fees is GRANTED. The court AWARDS plaintiff Archtic, LLC a total of $128,959.35. ($64,897.30 + $51,255.00 + $12,098.25 + $708.80 = $128,959.35)